

TERMS OF SERVICE AGREEMENT BETWEEN INDRA ASSOCIATES CORP. AND PRIME INNOVATIONS PVT. LTD.

Between: **Indra Associates Corp.** (Provider) and **Prime Innovations Pvt. Ltd.** (User)

Effective Date: 2022-11-26

Termination Date: 2023-11-26

Governing Law: the laws of the State of Delaware

1. Payment Terms

Prime Innovations Pvt. Ltd. shall pay Indra Associates Corp. a fee of Rs. 1,68,00,000 (Rupees One crore, sixty-eight lakh Only) for the Services rendered under this Agreement. Payment shall be made within thirty (30) days of receipt of an invoice. All amounts are exclusive of applicable taxes, which shall be borne by Prime Innovations Pvt. Ltd.. Late payments shall attract interest at the rate of eighteen percent (18%) per annum.

2. Scope of Services

Indra Associates Corp. shall provide to Prime Innovations Pvt. Ltd. the following services as detailed in Schedule A attached hereto: project management, technical implementation, quality assurance, documentation, and post-deployment support. Any modification to the scope of services must be agreed in writing by both Parties.

3. Assignment

Neither Party may assign or transfer any of its rights or obligations under this Agreement without the prior written consent of the other Party. Any purported assignment in violation of this clause shall be null and void. Notwithstanding the foregoing, either Party may assign this Agreement to an affiliate without consent, provided it gives thirty (30) days' prior written notice.

4. Insurance

Indra Associates Corp. shall, throughout the term of this Agreement, maintain at its own cost: (a) professional indemnity insurance of not less than Rs. 1,68,00,000 (Rupees One crore, sixty-eight lakh Only) per occurrence; (b) public liability insurance of not less than Rs. 1,68,00,000 (Rupees One crore, sixty-eight lakh Only) per occurrence; (c) employers' liability insurance as required by applicable law. Indra Associates Corp. shall provide evidence of such insurance upon request.

5. Indemnification

Indra Associates Corp. shall indemnify, defend, and hold harmless Prime Innovations Pvt. Ltd. and its officers, directors, employees, and agents from and against any claims, losses, damages, liabilities, and expenses (including reasonable legal fees) arising out of Indra Associates Corp.'s breach of this Agreement or gross negligence or wilful misconduct. The indemnifying Party shall have the right to control the defence of any such claim.

6. Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware. Subject to Clause 4, the courts of Ahmedabad shall have exclusive jurisdiction over any dispute arising out of or relating to this Agreement.

7. Severability

If any provision of this Agreement is held to be invalid, illegal, or unenforceable, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable. The validity and enforceability of the remaining provisions shall not be affected.

8. Subcontracting

Indra Associates Corp. shall not subcontract any material part of the Services without the prior written consent of Prime Innovations Pvt. Ltd.. Where subcontracting is permitted, Indra Associates Corp. shall remain fully responsible for the performance of the subcontractor and shall ensure the subcontractor is bound by obligations equivalent to those in Clause 1 and Clause 2.

9. Non-Solicitation

During the term of this Agreement and for a period of twelve (12) months after its termination, neither Party shall directly or indirectly solicit or recruit any employee or contractor of the other Party who was involved in the performance of this Agreement, without prior written consent.

10. Term

This Agreement shall commence on the Effective Date, 2022-11-26, and shall continue until 2023-11-26, unless earlier terminated in accordance with Clause 5. Upon expiry, both Parties shall fulfil all outstanding obligations within fifteen (15) days.

11. Termination

Either Party may terminate this Agreement by giving 15 days' written notice to the other Party. Either Party may terminate immediately upon written notice if the other Party commits a material breach that is not cured within thirty (30) days of receipt of written notice of such breach. Upon termination, Prime Innovations Pvt. Ltd. shall pay for all Services rendered up to the date of termination.

12. Notices

All notices under this Agreement shall be in writing and delivered to the addresses set out in Schedule B by registered post, courier, or email with read receipt. Notices shall be deemed received: (a) if by registered post, five (5) days after posting; (b) if by courier, one (1) business day after delivery; (c) if by email, on the day sent, provided no delivery failure notice is received.

13. Data Protection

Each Party shall comply with all applicable data protection laws and regulations. Indra Associates Corp. shall process personal data of Prime Innovations Pvt. Ltd.'s employees or customers only as necessary to perform the Services and strictly in accordance with Prime Innovations Pvt. Ltd.'s written instructions. Indra Associates Corp. shall implement appropriate technical and organisational measures to protect such data.

14. Entire Agreement

This Agreement, together with all Schedules and Exhibits attached hereto, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior negotiations, representations, warranties, and understandings of any kind, whether written or oral.

IN WITNESS WHEREOF

Provider

Indra Associates Corp.

Signature: _____

Name: _____

Title: _____

Date: _____

User

Prime Innovations Pvt. Ltd.

Signature: _____

Name: _____

Title: _____

Date: _____